

****September 7, 2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in August 2023, an investigation into the operator ISRA Center Marketing Research SRL and found a violation of the provisions of Article 14 paragraph (2) letter f), Article 17 paragraph (1) letter c), and Article 21 paragraph (1) of Regulation (EU) 2016/679.

The operator was sanctioned with two fines totaling 9,898 lei, equivalent to 2,000 EURO.

The investigation was initiated following a complaint submitted by an individual who reported that the operator was sending unsolicited messages to their email address.

During the investigation, the National Authority for the Supervision of Personal Data Processing found that ISRA Center Marketing Research SRL collected the personal data of the data subject (for example, name, surname, email address, workplace) indirectly, from public sources, for the purpose of proposing participation in a market research study.

Thus, it emerged during the investigation that the operator did not present evidence showing that it provided clear and complete information to the individual whose personal data was collected from public sources, failing to communicate all the information required by Article 14 of Regulation (EU) 2016/679, such as the source of data collection (Article 14 paragraph (2) letter f)). Additionally, it was found that the source of data collection was not clearly presented in the information available on the operator's website.

Furthermore, the investigation revealed that ISRA Center Marketing Research SRL did not take the necessary measures to respond to the request to exercise the right to object to data processing. Thus, the operator continued to process the applicant's data by sending a new message, thereby violating the provisions of Article 17 paragraph (1) letter c) and Article 21 paragraph (1) of Regulation (EU) 2016/679.

Additionally, in accordance with the provisions of Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the operator was also subject to the following corrective measures:

- To ensure compliance with Regulation (EU) 2016/679 in the processing operations of personal data, by providing clear and complete information to the data subjects, both on its own website and in other documents communicated directly to the data subjects, by providing all the information required by Articles 13 and 14, as applicable, and in compliance with the transparency conditions set out in Article 12 of the same Regulation;
- To analyze the legality of the processing of personal data collected previously from sources other than directly from the data subjects and to delete from the record system, if applicable, the personal data whose processing was not carried out in accordance with all the provisions of Regulation (EU) 2016/679.

We mention that the operator has paid the fines imposed.

****A.N.S.P.D.C.P.****